

Court No. - 7

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1651 of 2023

Applicant :- Naseem Akhtar

Opposite Party :- Sri Abhinav Tiwari, Executive Engineer , Purvanchal
Vidyut Vitran Khand

Counsel for Applicant :- Adarsh Kumar Shukla

Hon'ble Rohit Ranjan Agarwal,J.

1. Heard learned counsel for the applicant.
2. The present contempt application has been filed under Section 12 of the Contempt of Courts Act for punishing the Opposite Party for willful disobedience of the judgment and order dated 20.05.2022 passed by this Court in Writ -C No.4141 of 2022.
3. It is contended that applicant had filed aforesaid writ, which was disposed of vide order dated 20.05.2022 directing the opposite party to decide objection of applicant under para 6.8 of U.P. Electricity Supply Code, 2005 within a period of four weeks from the date of service of order. Copy of the said order was served to the opposite party through registered post on 14.07.2022, but the said direction has not been complied with by the opposite party till date.
4. Prima facie, a case has been made out for punishing the opposite party for willful disobedience of the judgment and order passed in the aforesaid writ petition.
5. However, no notice is issued to the opposite party at this stage. The opposite party is granted three months' further time to comply with the order dated 20.05.2022 passed by this Court in Writ-C No. 4141 of 2022 from the date of production of a certified copy of this order.

6. The applicant shall supply a duly stamped registered envelope addressed to the opposite party and another self-addressed envelope to the office within two weeks from today. The office shall send a copy of this order along with the self-addressed envelope of the applicant with a copy of contempt application to the opposite party within one week thereafter and keep a record thereof.

7. The opposite party shall comply with the directions of the writ court and intimate the applicant the order through the self-addressed envelop within a week thereafter.

8. In case, the opposite party does not comply with the order, it would be open to the applicant to approach this court again.

9. With the aforesaid observations, this application is finally disposed of at this stage.

Order Date :- 21.4.2023

Kushal